



IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

WRIT PETITION NO. 3071 OF 2022

Narayan Ramchandra Satpute (since deceased,
through LRs)

...Petitioners

Versus

Bhanudas Ramchandra Kalate and Others

...Respondents

Mr. Nitin P. Deshpande for Petitioner.

Smt. Aswhini A. Purav, AGP for Respondent Nos. 2 and 3-State of Maharashtra.

CORAM : SHARMILA U. DESHMUKH, J.

DATE : 30th June, 2026

P. C. :

1. The present Petition is at the instance of the original landlord challenging the order dated 11th May, 2021 passed by the Maharashtra Revenue Tribunal [for short, "**MRT**"] rejecting the Petitioner's revision application thereby upholding the order of the Tahsildar and the Sub-Divisional Officer.

2. The facts are that on 3rd July, 2007, an application came to be filed by the Respondent No1 before Tahsildar and ALT under Section 32G of the the Maharashtra Tenancy and Agricultural Lands Act, 1948 [for short, "**the Tenancy Act**"] for fixation of purchase price. The

Tahsildar noted that the Respondent No. 1 had filed his submissions on 9th May, 2008 contending the purchase price was already fixed under Section 32G of Tenancy Act, which was duly paid and is recorded in IP ledger. The Tahsildar considered the photocopy of the extract of IP ledger produced by the Respondent No. 1 which reflected the payment of the purchase price. It held that there was no question of fresh decision of fixation of purchase price and directed issuance of Section 32M certificate by order dated 10th October, 2008.

3. An appeal against the said order was filed before the Sub-Divisional Officer and the argument of the Petitioner was that the receipts for payment of the purchase price was not produced and only on the basis of extract of IP ledger, it cannot be accepted that purchase price has been paid. The Sub-Divisional Officer noted that the 7/12 extracts from the year 1941-1942 till 2006-2007 reflected the name of pre-decessor of Respondent No. 1 as tenant and upon his death, the name of Respondent No 1 was entered as the legal heir. It noted that no documents were produced by the Petitioner to demonstrate that the land was being cultivated by the Petitioner. It upheld the findings of the Tahsildar based on the extract of IP ledger and dismissed the Appeal.

4. The Petitioners preferred the Revision Application before the MRT, which came to be dismissed by the impugned order dated 11th

May, 2021 affirming the findings of learned ALT and Sub-Divisional Officer. Before the MRT, the submission of the Petitioner was that as the Respondent No 1 himself filed the proceedings under Section 32G of Tenancy Act, it is evident that there were no prior proceedings under Section 32G. The MRT noted that it is undisputed that as on 1st April, 1957, the pre-decessor of Respondent No 1 was the tenant. The MRT considered the dispute was to whether there was prior proceedings under Section 32G in which the purchase price was fixed and paid. It accepted the authenticity of the contents of IP ledger as it was a public document.

5. Mr. Deshpande, learned counsel appearing for the Petitioner has taken this Court through the order of the learned ALT, the SDO and learned Member of MRT and would submit that learned ALT has taken into consideration the payment of purchase price by the tenant which proceedings were in respect of Section 32-G/Wakad/78 and in response to the application filed under Right to Information for copy of Section 32G proceedings, it was informed that the same is not traceable. He would further submit that the I. P. ledger at page 33 when juxtaposed with the findings of the learned ALT regarding the challan number and date of payment shows discrepancy, which discrepancy has not been noticed and the proceedings under Section 32G were converted into 32M proceedings and the 32M certificate was directed to be issued.

6. He would further point out the order of this Court directing the Respondents to file an Affidavit-in-reply and place on record the copy of the order passed under Section 32G of the Tenancy Act which was considered by the Trial Court, which has not been done.
7. None appears on behalf of the Respondent-tenants.
8. Learned AGP would point out that the order of the Tahsildar referring the challan number, the date of payment reflected in I. P. Ledger corresponds with the copy of I. P. Ledger produced by the Petitioner at page 33. She would point out that there is no discrepancy and as the purchase price was already paid under Section 32G proceedings, the learned ALT has rightly directed the issuance of 32M certificate.
9. I have considered the submissions and perused the record.
10. By the order of 13th April, 2022, the Respondents were directed to file the Affidavit-in-reply and place on record the copy of the order under Section 32G of the Tenancy Act. It appears that in view of the submissions which were canvassed before this Court by Mr. Deshpande, the order came to be passed. The copy of the I. P. ledger has been produced by the Petitioner themselves at Exhibit-G at page 33 of the Petition. Perusal of the I. P. Ledger would indicate the name of the tenant Ramchandra Dagadu Kalate and notice of payment under 32G-Wakad-78. The I. P. Ledger further records that the amounts paid by

the tenant, and comparison of the details of the payment, the challan number and date of payment would indicate that the same corresponds with the ALT's findings as regards the payments made. The document is produced by the Petitioner himself and it is therefore, clear that the Section 32G proceedings have in fact culminated into order and the purchase price was paid. As the extract of IP ledger is public document, there is no reason to doubt its authenticity and even if the order passed under Section 32G is not produced, the extract of IP ledger establishes the factum of fixation of purchase price and payment of purchase price by the tenant.

11. The only consequence was the issuance of Section 32M certificate which certificate was thereafter, directed to be issued. The learned SDO has taken into consideration the findings of the ALT and has upheld the same and dismissed the Appeal. The learned Member of the MRT has noted the concurrent findings of learned ALT and learned SDO, and has rejected the revision. As the document at page 33 demonstrates the date of payment, Section 32M certificate was rightly directed to be issued.

12. In view of the concurrent findings by learned ALT, SDO and learned Member of MRT, this Court is not inclined to exercise its jurisdiction under Article 227 of the Constitution of India.

13. Resultantly, Petition fails and stands dismissed.

14. In view of above, nothing survives for consideration in pending applications, if any, and the same stand disposed of.

[SHARMILA U. DESHMUKH, J.]